CAUSE NO. D-1-GN-26-000000

ALPHA WIDGETS, LLC *Plaintiff,*	§ § §	**IN THE DISTRICT COURT OF**
v.	§ §	**353RD JUDICIAL DISTRICT**
BETA LOGISTICS, INC. AND JOHN DOE *Defendants.*	§ § §	**TRAVIS COUNTY, TEXAS**

[PROPOSED] ORDER GRANTING DEFENDANT BETA LOGISTICS, INC.'S RULE 91A MOTION TO DISMISS

On this day the Court considered Defendant Beta Logistics, Inc.'s Motion to Dismiss under Texas Rule of Civil Procedure 91a (the "Motion"). Having considered the Motion, any response, the pleadings, the arguments of counsel, and the applicable law, and having decided the Motion without considering evidence, the Court finds that the Motion was timely filed and heard, and that the causes of action Plaintiff asserts against Beta Logistics, Inc. in its petition have no basis in law.

It is therefore ORDERED that:

1. The Motion is GRANTED.

2. Plaintiff's causes of action against Defendant Beta Logistics, Inc. are DISMISSED.

3. Under Texas Rule of Civil Procedure 91a.7, Beta Logistics, Inc. is awarded, as the prevailing party, its costs and reasonable and necessary attorney's fees expended with respect to the challenged causes of action, in the amount of $_____, to be paid by Plaintiff within thirty days of the date this Order is signed.

4. All relief not expressly granted in this Order is DENIED.

The Court further ORDERS that the dismissal is (check one):

☐ WITH prejudice to refiling.

☐ WITHOUT prejudice to refiling.

SIGNED on this _____ day of _____, 20_____.

_____
JUDGE PRESIDING
353RD DISTRICT COURT
TRAVIS COUNTY, TEXAS

APPROVED AS TO FORM:

EXAMPLE & PARTNERS LLP

By: /s/ Jane Q. Lawyer
State Bar of Texas No. 00000001
100 Congress Avenue, Suite 100
Austin, Texas 78701
Telephone: (512) 555-0100
Email: jlawyer@example.test

Counsel for Defendant Beta Logistics, Inc.

SAMPLE LAW PLLC

By: /s/ Richard Roe
State Bar of Texas No. 00000002
200 Guadalupe Street
Austin, Texas 78701
Email: rroe@sample.test

Counsel for Plaintiff Alpha Widgets, LLC